

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

-----X

ANTHONY CALO,

Plaintiff,

-against-

CITY OF NEW YORK, RUSSELL BOOKER,
Individually, ANTHONY ALVINO, Individually, and
JOHN and JANE DOE 1-10, Individually (the names
John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007RUSSELL BOOKER
c/o NYPD Legal Bureau
1 Police Plaza
New York, NY 10038ANTHONY ALVINO
c/o NYPD 42th Precinct
830 Washington Avenue
Bronx, NY 10451Dated: New York, New York
December 8, 2020BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff, ANTHONY CALO
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132By: Brett Klein
BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

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ANTHONY CALO,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

Jury Trial Demanded

CITY OF NEW YORK, RUSSELL BOOKER,
Individually, ANTHONY ALVINO, Individually, and
JOHN and JANE DOE 1 through 10, Individually (the names
John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendant.

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Plaintiff, ANTHONY CALO, by his attorneys, BRETT H. KLEIN, ESQ., PLLC, as and
for his Verified Complaint, alleges as follows:

1. Plaintiff ANTHONY CALO is a forty-three-year-old Hispanic American male
residing in the State of New York, County of New York.

2. The cause of action alleged herein arose in the State of New York, County of the
Bronx.

3. Defendant CITY OF NEW YORK was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

4. Defendant CITY OF NEW YORK maintains the New York City Police Department
(hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department,
authorized to perform all functions of a police department as per the applicable sections of the
aforementioned municipal corporation, CITY OF NEW YORK.

5. That at all times hereinafter mentioned, defendants RUSSELL BOOKER,
ANTHONY ALVINO, and JOHN and JANE DOE 1 through 10, were duly sworn police officers

of said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

8. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

9. The cause of action alleged herein arose in the State of New York, County of Bronx.

10. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to, and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

11. Defendant CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

12. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

13. Plaintiff has complied with all conditions precedent to maintaining the instant action.

14. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

FACTS

15. On April 26, 2019, at approximately 7:35 p.m., in the vicinity of 1572 Hoe Avenue, Bronx, New York, plaintiff was unlawfully arrested by NYPD officers including, without limitation, defendant officers RUSSELL BOOKER and ANTHONY ALVINO.

16. On the date in question, plaintiff was driving east on 173rd Street and preparing to make a left turn into a parking lot on Hoe Avenue when he observed the defendants' NYPD vehicle signaling for him to pull over.

17. Plaintiff subsequently pulled over and was thereafter approached by defendants BOOKER and ALVINO.

18. Defendant BOOKER then ordered plaintiff to roll down his window, and plaintiff complied.

19. Defendant BOOKER then ordered plaintiff to produce his license and registration.

20. Plaintiff proceeded to ask defendant BOOKER why he was being pulled over, to which defendant BOOKER responded, in sum and substance, that plaintiff was not entitled to an explanation.

21. Plaintiff complied with defendant BOOKER's request.

22. Thereafter, a verbal exchange ensued between plaintiff and defendant BOOKER, in which plaintiff expressed that he had a right to be told why he was pulled over.

23. Defendant BOOKER then informed plaintiff that he was pulled over because his license plate cover obstructed the view of the words "New York" on his license plate.

24. Plaintiff subsequently obtained permission from defendants to step out of his vehicle to take a picture of his license plate.

25. Plaintiff then proceeded to take said picture to have proof that relevant information on the plate was not, as defendants falsely alleged, obstructed by the plate cover.

26. Plaintiff returned inside his vehicle after taking the photograph.

27. Upon plaintiff re-entering his vehicle, defendant BOOKER ordered him to step out of the car.

28. Plaintiff, perplexed by the order since he had not committed any crime and up to that point had cooperated with defendants' orders, asked defendant BOOKER why he needed to step out of the vehicle.

29. Defendant BOOKER then proceeded to open plaintiff's car door and reach over with one hand to unbuckle plaintiff's seatbelt and with his other hand to grab plaintiff's tool belt.

30. Defendant BOOKER then told plaintiff that he needed to step out of his car because he allegedly had a blade on him.

31. Plaintiff, who at the time was employed as an operational engineer and building superintendent, was dressed in his work uniform displaying his job title, over which he wore a belt which had the tools he used for work, including without limitation a flashlight, a Leatherman multi-tool, and a small sheetrock cutting knife.

32. Plaintiff attempted to explain to defendant BOOKER that the knife on his belt was a tool he used for work, but defendant maintained that plaintiff should exit his vehicle.

33. Plaintiff complied with the order.

34. Defendants thereafter confiscated plaintiff's work tools and proceeded to handcuff plaintiff in an extremely overtight manner, causing him severe discomfort.

35. Plaintiff's requests that the handcuffs be loosened or briefly opened so that he could adjust his wrists were unaddressed.

36. Plaintiff was then placed in a NYPD vehicle and transported to the NYPD 42nd Precinct, during which time he endured excruciating pain from the the over-tight handcuffs.

37. Upon arriving at the precinct, plaintiff requested a phone call to notify his employer that due to his arrest, he would not make it to his next shift; plaintiff's request was denied.

38. Plaintiff was detained at the precinct for a number of hours, and then released with a desk appearance ticket maliciously issued to him based on the false allegations purported by defendant BOOKER.

39. Defendant BOOKER initiated, commenced and continued a malicious prosecution against plaintiff in the Bronx County Criminal Court by falsely swearing to a number of false allegations against plaintiff including, without limitation, that plaintiff was in possession of a purported weapon, which was in fact a tool plaintiff used for work, and moreover that plaintiff was in possession of a controlled substance, an accusation which stemmed from, upon information and belief, lawfully prescribed and possessed prescription medication that the defendant officers removed from plaintiff's vehicle.

40. The false evidence conveyed by defendant BOOKER to the Bronx County District Attorney's Office ("BCDAO") was utilized against plaintiff in the ensuing prosecution, and resulted in a deprivation of plaintiff's liberty.

41. Specifically, as a result of defendant BOOKER's actions, plaintiff was forced to endure false charges hanging over his head and compelled to return to Court on at least three occasions until September 10, 2019, when his case was dismissed and sealed.

42. Furthermore, plaintiff sustained economic damages in the form of lost wages as a result of missing a three-day work shift due to his arrest, and subsequently being prohibited from doing any overtime shifts for one week.

43. Defendants RUSSELL BOOKER, ANTHONY ALVINO, and JOHN and JANE DOE 1 through 10 were acting under the color of law when they unlawfully arrested plaintiff and/or failed to intervene in said arrest, and when defendant BOOKER initiated a malicious prosecution against plaintiff based on the false information conveyed to the BCDAO.

44. Defendants RUSSELL BOOKER, ANTHONY ALVINO and JOHN and JANE DOE 1 through 10 either directly participated in the false arrest, manufacturing of evidence, and/or malicious prosecution of plaintiff or failed to intervene in said constitutional violations despite being present for and/or aware that said violations were occurring, and despite an opportunity to intervene.

45. Defendants and JOHN and JANE DOE 1 through 10 otherwise participated in the above unconstitutional acts and/or failed to properly monitor, train, and supervise said defendants.

46. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees; and pursuant to customs or practices of falsely arresting individuals and falsification of evidence to support said arrests.

47. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers are insufficiently trained regarding probable cause to arrest and engage in a practice of falsification to support unlawful arrests.

48. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW

YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

49. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

50. As a result of the foregoing, plaintiff ANTHONY CALO sustained, *inter alia*, physical pain, economic damages, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

State Law Claims

AS AND FOR A FIRST CAUSE OF ACTION

(Malicious Prosecution under the laws of the State of New York Against Defendants City and the Individually Named Defendants)

51. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. Defendant RUSSELL BOOKER initiated, commenced and continued a malicious prosecution against plaintiff ANTHONY CALO.

53. Defendant BOOKER caused plaintiff to be prosecuted without probable cause until the charges were dismissed and sealed on or about September 10, 2019.

54. Defendant City, as employer of defendant BOOKER, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive

damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York Against Defendant City of New York)

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. Defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of defendants, who falsely arrested plaintiff and purported false claims which lead to his prosecution.

58. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

59. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention Against Defendant City of New York)

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered "1" through "59" with the same force and effect as if fully set forth herein.

61. Defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of defendants RUSSELL BOOKER, ANTHONY ALVINO, and JOHN and JANE DOE 1 through 10, who falsely arrested plaintiff and maliciously prosecuted plaintiff.

62. Defendant CITY OF NEW YORK knew, or should have known in the exercise of

reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

63. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Negligent Training and Supervision under the laws of the State of New York Against Defendant City of New York)

64. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "63" with the same force and effect as if fully set forth herein.

65. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants and purported false claims which lead to his prosecution.

66. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Federal Claims

AS AND FOR A FIFTH CAUSE OF ACTION

(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983 Against the Individually Named Defendants)

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "66" with the same force and effect as if fully set forth herein.

68. The individually named defendants arrested plaintiff ANTHONY CALO without

probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

69. The individually named defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

70. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION

(Malicious Prosecution under 42 U.S.C. § 1983 Against the Individually Named Defendants)

71. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "70" with the same force and effect as if fully set forth herein.

72. The individually named defendants initiated, commenced and continued a malicious prosecution against plaintiff ANTHOY CALO.

73. The individually named defendants caused plaintiff to be prosecuted without probable cause until the charges were dismissed and sealed on or about September 10, 2019.

74. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Violation of Right to Fair Trial/Fabrication of Evidence under 42 U.S.C. § 1983 Against the Individually Named Defendants)

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "74" with the same force and effect as if fully set forth herein.

76. Defendant BOOKER created false evidence against plaintiff ANTHONY CALO.

77. Defendant BOOKER utilized this false evidence against plaintiff in legal proceedings.

78. As a result of defendant BOOKER's creation and use of false evidence, plaintiff suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

79. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Excessive Force under 42 U.S.C. § 1983 Against the Individually Named Defendants)

80. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "79" with the same force and effect as if fully set forth herein.

81. The level of force employed by defendant officers was excessive, objectively unreasonable, and otherwise in violation of plaintiff ANTHONY CALO's constitutional rights.

82. As a result of the aforementioned conduct of the defendant officers, plaintiff was subjected to excessive force and sustained physical pain and emotional distress.

83. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

AS AND FOR A NINTH CAUSE OF ACTION

(Failure to Intervene under 42 U.S.C. § 1983 Against the Individually Named Defendants)

84. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “83” with the same force and effect as if fully set forth herein.

85. The individually named defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. The individually named defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff’s liberty was restricted, he was put in fear of his safety, he was humiliated and subjected to handcuffing and other physical restraints, he was maliciously prosecuted, and his right to fair trial was denied.

88. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION

(Supervisory Liability under 42 U.S.C. § 1983 Against the Individually Named Defendants)

89. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “88” with the same force and effect as if fully set forth herein.

90. The supervisory defendant officer personally caused plaintiff’s constitutional injury by participating in the constitutional violations suffered by plaintiff and being deliberately or consciously indifferent to the rights of plaintiff in failing to properly supervise and train his subordinate employees.

91. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 Against Defendant City of New York)

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “91” with the same force and effect as if fully set forth herein.

93. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

94. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, arresting citizens without probable cause and then committing perjury and/or engaging in falsification and/or manufacturing evidence in an effort to convict such individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff ANTHONY CALO’s rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

95. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

96. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

97. As a result of the foregoing customs, policies, usages, practices, procedures and

rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff was unlawfully arrested and maliciously prosecuted.

98. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff constitutional rights.

99. All of the foregoing acts by defendants deprived plaintiff ANTHONY CALO's of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from excessive use of force;
- C. To be free from falsification of evidence; and
- D. To be free from malicious prosecution;

100. As a result of the foregoing, plaintiff ANTHONY CALO is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiff ANTHONY CALO demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper

Dated: New York, New York
December 8, 2020

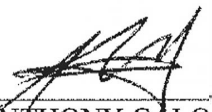
BRETT H. KLEIN, ESQ., PLLC
Attorneys for Plaintiff, ANTHONY CALO
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: Brett Klein
BRETT H. KLEIN

VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

ANTHONY CALO, being duly sworn, deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes it to be true.



ANTHONY CALO

Sworn to before me this 9th day
of December, 2020.

Brett Klein
Notary Public, State of New York

BRETT H. KLEIN Notary Public, State of New York No. 02KL6008072 Qualified in Nassau County Commission Expires September 17, 2022
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SUPREME COURT STATE OF NEW YORK
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ANTHONY CALO,

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SUMMONS AND VERIFIED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC

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305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132